

**Superior Court of the State of California  
County of Orange**

**Tentative Rulings  
Law and Motion Calendar  
Department C23  
Honorable David J. Hesseltine**

**Hearing Date and Time: May 14, 2026, at 2:00 p.m.**

**Court Reporters:** Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Civil Court Reporter Pooling](#). For additional information regarding court reporter availability, please visit the court's website at [Court Reporter Interpreter Services](#).

**Tentative Rulings:** The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case.

**The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.**

**Submitting on Tentative Rulings:** If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

**Non-Appearances:** If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4<sup>th</sup> 436, 442, fn. 1.)

**Appearances:** Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

<https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

**Public Access:** The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

**NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.**

| #  | Case Name                                                   | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
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| 1. | <b>DMC Charter Service, LLC vs. Namdar</b><br>2024-01399364 | <p>On calendar is the continued hearing on the order to show cause and affidavit for contempt the court signed and issued on January 5, 2026, ordering defendant and judgment debtor Bjian Namdar (Debtor) to appear in court and show cause why he should not be held in contempt of court for willfully failing to comply with the court's order. Specifically, the order to show cause was issued on the application of plaintiffs and judgment creditors DMC Charter Service, LLC and DeMarre Carroll (collectively, Creditors) based on Debtor's alleged willful failure to comply with the court's May 15, 2025 order for Debtor to respond to Creditors' request for production of documents and to produce all responsive documents.</p> <p>The court has conducted several hearings on Creditor's request for an OSC and then on the OSC itself. Most recently, on March 26, 2026, the court continued the hearing to today's date because Creditors had not personally served the OSC and all supporting documents on Debtor as required to proceed and confer jurisdiction over Debtor. (<i>Koehler v. Superior Court</i> (2010) 181 Cal.App.4th 1153, 1169; Code Civ. Proc., §§ 1015, 1016; see also Minute Orders dated Mar. 26, 2026, Feb. 5, 2026.) At the March 26, 2026 hearing, the court ordered Creditors to personally serve Debtor and file proof of service no later</p> |

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|    |                                                                                                                                                               | <p>than May 6, 2026. Proof of service, however, was not filed until May 8, 2026.</p> <p>All parties are ordered to appear for the hearing to discuss how to proceed in this matter.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 2. | <p><b><i>Rose vs. Allstate Northbrook Indemnity Company</i></b></p> <p>2026-01550977</p>                                                                      | <p><b>OFF CALENDAR</b> pursuant to notice filed on April 23, 2026</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 3. | <p><b><i>City of Placentia vs. The Testate and Intestate Successors of H. Michael Ford, Deceased, and Lynn D. Ford, Deceased</i></b></p> <p>2025-01502207</p> | <p>Before the court is the continued hearing on a petition for order to abate substandard building and appointment of a receiver filed by petitioner City of Placentia (Petitioner) against respondent Barry Rae, Solely in his Capacity as the Special Administrator of the Estate of Lynn D. Ford (Respondent).</p> <p>On October 22, 2025, the parties filed a Compliance Stipulation and Order to Continue Hearing on Receivership Petition, which was approved by the court (Stipulated Order). Pursuant to the Stipulated Order, Respondent agreed to rehabilitate the subject property and bring it into full compliance, and the parties agreed to continue the hearing on the petition. (ROA 25.)</p> <p>When the court initially reviewed this file for today's hearing, neither party had submitted any additional documents after the Stipulated Order. Late in the afternoon on May 11, 2026, Petitioner filed a declaration by one of its Code Enforcement Officers acknowledging Respondent has pulled various permits for the property, submitting plans for review, performed substantial work on the property, and requested various inspections. The Code Enforcement Officer, however, further states the work is not complete and there recently has been little or no work performed.</p> <p>The declaration was not brought to the court's attention until late in the afternoon on May 12, 2026, and Respondent was not provided a reasonable opportunity to respond to the newly filed declaration.</p> <p>Based on the foregoing, the court <b>CONTINUES</b> the hearing on the petition to <b>THURSDAY, JULY 23, 2026, AT 2:00 P.M., IN DEPARTMENT C23</b>. Petitioner shall file and serve any supplemental brief or declarations updating the court on or before <u>July 10, 2026</u>. Respondent shall file</p> |

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|    |                                                      | <p>and serve any response to Petitioner’s most recent and any future supplemental filings on or before <u>July 16, 2026</u>.</p> <p>Petitioner’s counsel is ordered to give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 4. | <p><b>Sams vs. Castillo</b></p> <p>2026-01537470</p> | <p>Before the court is a continued hearing on the amended petition for decedent’s cremated remains filed by petitioner Michele Sams (Petitioner). This matter previously came on for hearing on April 9, 2026. Prior to that hearing, the Court posted a tentative ruling. Petitioner appeared at the hearing and submitted on the Court’s tentative ruling. The Court then issued the following Order:</p> <p>“Before the court is the amended petition for decedent’s cremated remains filed by petitioner Michele Sams (Petitioner) on February 17, 2026. Petitioner filed the original petition commencing these proceedings on January 2, 2026. As more fully set forth below, the hearing on the amended petition is <b>CONTINUED TO MAY 14, 2026, AT 2:00 P.M., IN DEPARTMENT C23</b>, for proof of proper service and notice of hearing.</p> <p>“By the petition, Petitioner seeks a court order regarding the disposition of the remains of her alleged biological father, Billy Joe Hill (Decedent). Petitioner alleges respondent Lindsie Castillo (Respondent) also is a biological daughter of Decedent, and Respondent currently [h]as possession of Decedent’s cremated remains. Specifically, Petitioner seeks a court order (1) determining Petitioner has an equal right to the disposition of Decedent’s remains and possession of one-half of Decedent’s remains, (2) ordering Respondent to release one-half of Decedent’s remains to Petitioner within 30 days, and (3) awarding Petitioner \$1,000.</p> <p>“Petitioner, however, has not filed any proof of service showing Respondent has been served with either of the petitions, the summons, or any other documents in this case. Likewise, there is no notice or proof of service showing Respondent was given notice of this hearing. Without proper service of all required documents on Respondent, the court has no jurisdiction to make any enforceable orders regarding Respondent. Similarly, the court cannot reach the merits of the amended petitioner without proof showing Respondent was given proper notice of the hearing on the amended petition.</p> <p>“The court cannot provide legal advice to any party. Petitioner therefore is encourage[d] to consult the court’s self-help center, any available legal aid society, or a</p> |

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|    |                                                                                     | <p>licensed attorney to provide guidance on how to properly proceeding with this case.</p> <p>"Based on the foregoing, the hearing on the amended petition is <b>CONTINUED</b> as stated above.</p> <p>"Petitioner is ordered to serve Respondent with notice of this ruling."</p> <p>Since the time of the April 9, 2026 Minute order, nothing new has been filed. Accordingly, the amended petition is <b>DENIED</b>.</p> <p>The clerk shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 5. | <p><b><i>Baldeo vs. Whittier Christian High School</i></b></p> <p>2026-01546820</p> | <p>Before the court is the hearing on the Verified Petition for Injunctive Relief Compelling Compliance with Labor Code Section 1198.5 and for Statutory Penalties, Attorney Fees, and Costs (Petition) filed by plaintiff Sharlecia Baldeo (Plaintiff) against defendant Whittier Christian High School (Defendant). For the reasons set forth below, the Petition is <b>GRANTED</b>.</p> <p>Labor Code section 1198.5 provides, "[e]very current and former employee, or their representative, has the right to inspect and receive a copy of the personnel records that the employer maintains relating to the employee's performance, including education or training records, or to any grievance concerning the employee." (Lab. Code § 1198.5, subd. (a)(1).)</p> <p>Pursuant to Labor Code section 1198.5, subdivision (b)(1), "[t]he employer shall make the contents of those personnel records available for inspection to the current or former employee, or their representative, at reasonable intervals and at reasonable times, but not later than 30 calendar days from the date the employer receives a written request . . . ." (Lab. Code § 1198.5, subd. (b)(1).) "If an employer fails to permit a current or former employee, or their representative, to inspect or copy personnel records within the times specified in this section, or times agreed to by mutual agreement as provided in this section, the current or former employee or the Labor Commissioner may recover a penalty of seven hundred fifty dollars (\$750) from the employer." (Lab. Code § 1198.5, subd. (k).) "A current or former employee may also bring an action for injunctive relief to obtain compliance with this section, and may recover costs and reasonable attorney's fees in such an action." (Lab. Code § 1198.5, subd. (l).)</p> |

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|  |  | <p>On May 4, 2026, Defendant filed an unverified answer to the Petition. Defendant was duly served with notice of the hearing on this Petition (see ROA 12), but no formal opposition to the Petition was filed.</p> <p>Given no formal opposition to the Petition was filed, the only evidence before the court is the verified Petition and declaration of Plaintiff's counsel. These documents show, on December 5, 2025, Plaintiff, through her counsel, made a written request to Defendant for inspection and copying of her personnel records, but Defendant failed to produce the records within the time required by Labor Code section 1198.5. (See Petition ¶¶ 6-7 and Exhibit 1 thereto.) Defendant admits in its answer to the Petition Plaintiff, through her representative, submitted a written request dated December 5, 2025, seeking inspection and copying of personnel records. (See Answer, ¶ 6.) Although Defendant's answer vaguely asserts Defendant has complied and continues to comply with section 1198.5 and has produced all personnel records in its possession, custody, or control that are responsive, except for those that are unavailable due to circumstances outside Defendant's control or are subject to valid legal exemptions, Defendant has submit no evidence to support this assertion nor has Defendant provided any specific facts as to how and when it allegedly comply, or what documents are exempt and why.</p> <p>Based on the foregoing, the Petition is <b>GRANTED</b>. Defendant is ordered to make the contents of Plaintiff's personnel records available for inspection by Plaintiff, through her counsel, within 30 days of service of notice of this order.</p> <p>Plaintiff's request for the \$750 in statutory penalties under Labor Code section 1198.5, subdivision (k) also is <b>GRANTED</b> as Plaintiff has shown Defendant failed to permit Plaintiff to inspect her personnel records within the time specified in Labor Code section 1198.5.</p> <p>Finally, Plaintiff's request for \$4,005 in attorney fees and \$712.50 in costs under Labor Code section 1198.5, subdivision (l) is <b>GRANTED</b> as these amounts are reasonable and adequately supported by the declaration of Plaintiff's counsel. (See Ewart Decl., ¶¶ 5-9.)</p> <p>Plaintiff's counsel is ordered to submit a proposed judgment in accordance with this ruling, and to give notice of this ruling.</p> |
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| <p>6.</p> | <p><b><i>Gamo vs. J Star Auto Group, Inc.</i></b><br/><br/>2017-00942930</p>         | <p>Before the court is a motion by defendants J Star Auto Group, Inc. and Jared Merrell for an award of attorney fees following a remittitur issued by the Court of Appeal on October 17, 2025 (ROA 1453). The hearing is <b>CONTINUED TO JUNE 11, 2026, AT 2:00 P.M. IN DEPARTMENT C23.</b></p> <p>This motion was initially set for a hearing on January 22, 2026, with supplemental briefing to be filed pursuant to code. On January 12, 2026, the court continued the hearing to March 5, 2026, to allow Plaintiff to address the notice of rejection of electronic filing at ROA 1470 as well as to submit the appropriate documents to substitute the proper party to replace the deceased Plaintiff. On March 5, 2026, the hearing was again continued to allow Plaintiff a further opportunity to address these matters.</p> <p>Plaintiff's counsel has now submitted a stipulation and order substituting "Ludivine M. Garno, as Executor of the Estate of Tirso Melendez Garno, Jr." as plaintiff in this action. That filing was recently rejected because certain party names are not spelled correctly and therefore that document cannot be used to make the necessary substitution of plaintiff.</p> <p>Moreover, and more importantly for purposes of this motion, Plaintiff has yet to file the supplemental opposition which was rejected at ROA 1470. The parties all apparently have the supplemental opposition, but the court does not.</p> <p>The court therefore <b>CONTINUES</b> the hearing of this motion one final time as stated above.</p> <p>Plaintiff is ordered to immediately file the same supplemental opposition which was previously served on Defendants, and which was rejected at ROA 1470. If Plaintiff does not file the supplemental opposition by May 18, 2026, the motion will be decided strictly on the briefs the court has received, meaning no supplemental opposition will be considered. No further briefing will be allowed.</p> <p>Defendants to give notice.</p> |
| <p>7</p>  | <p><b><i>In Re: The Petition of Cosmic Chakra LLC</i></b><br/><br/>2026-01558882</p> | <p>Before the court is a petition by petitioner Cosmic Chakra LLC (Petitioner) for an order directing the California Secretary of State to reinstate Peitioner's corporate status to active. As more fully set forth below, the petition is <b>GRANTED.</b></p> <p>Pursuant to Government Code section 12261, subdivision (a)(1), Petitioner put forth evidence showing</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |

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|    |                                                                        | <p>the factual representations of LegalZoom and its agent Fahad Shaikh, which were contained in the termination document, were materially false and made in error. (Wegman Decl. ¶¶ 5-6; Robinson Decl. ¶¶ 4-7.) The terminating documents should not have been filed as Petitioner was instead only seeking a name change.</p> <p>The court directs the California Secretary of State to reinstate Petitioner effective the date a signed order is filed with the California Secretary of State.</p> <p>Petitioner’s counsel is ordered to submit a proposed order granting the petition.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 8. | <p><b>Arnel Management Company vs. Jouini</b></p> <p>2021-01223045</p> | <p>Before the court is the motion to vacate void judgment pursuant to Code of Civil Procedure section 473, subdivision (d) filed by defendant Abdelhedi Jouini (Jouini). For the reasons set forth below, the motion is <b>GRANTED</b>.</p> <p>“Under [Code of Civil Procedure] section 473, subdivision (d), the court may set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service.” (<i>Ellard v. Conway</i> (2001) 94 Cal.App.4th 540, 544.) A motion under section 473, subdivision (d) to vacate a judgment allegedly void for lack of service must be brought within a “reasonable time” after entry of default. (Weil &amp; Brown, Cal. Prac. Guide: Civil Proc. Before Trial (The Rutter Group 2025) ¶ 5:437.1, citing <i>California Capital Ins. Co. v. Hoehn</i> (2024) 17 Cal.5th 207, 212, 225-226 (disapproving prior authority that applied 2-year time limit to § 473(d) motions to vacate).)</p> <p>“[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.” (<i>Kremerman v. White</i> (2021) 71 Cal.App.5th 358, 371, internal quotes and citation omitted.) “When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process, the burden is on the plaintiff to prove . . . the facts requisite to an effective service.” (<i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413.)</p> <p>Jouini argues the default and possession judgment entered on November 2, 2021, and the default money judgment entered on August 3, 2023, are void for lack of personal jurisdiction because substituted service was not made in compliance with Code of Civil Procedure section 415.20, subdivision (b).</p> |



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|  |  | <p>The proof of service in this matter shows Jouini allegedly was served by substituted service at 15123 Brookhurst St. #176, Westminster, CA 92683 (Property) on September 30, 2021, by delivering copies of the documents to co-defendant Mohamed Nouri. (ROA 13.) A declaration of service by a registered process server establishes a presumption the facts stated in the declaration are true. (See Evid. Code, § 647; <i>Rodriguez v. Cho</i> (2015) 236 Cal.App.4th 742, 750.) That presumption, however, may be overcome with evidence from the party allegedly served showing service was not legally effective. (See <i>Young v. Midland Funding LLC</i> (2023) 91 Cal.App.5th 63, 86-87.)</p> <p>The court finds Jouini's evidence is sufficient to overcome the presumption created by the process server's declaration of service. Jouini attests he permanently vacated the Property in September 2018 and did not reside there after that date. (Jouini Decl., ¶ 2.) Jouini submitted proof of his residence in Anaheim and Oakland in 2019 through 2022. (Exhs. A-F to Jouini Decl.) Given Jouini's evidence showing he moved from the Property permanently in September 2018, any attempt at substituted service at the Property would have been ineffective. (See Code Civ. Proc., § 415.20, subd. (b) [providing for substituted service to a competent member of a household or a person apparently in charge provided service is effected "at the person's dwelling house, usual place of abode, . . . or usual mailing address"].)</p> <p>Jouini thus has shown he was not served with the summons in the manner prescribed by statute and the judgment is thus void as to Jouini. (<i>Kremerman v. White</i> (2021) 71 Cal.App.5th 358, 371.) The motion also was filed within a reasonable time after entry of the default judgment. This motion was filed approximately four and a half years after the default judgment was entered. Given Jouini had moved from the Property and did not receive notice of the lawsuit until October 2025, the court finds the motion is reasonably made.</p> <p>In the Opposition, assignee/judgment creditor Judgment Recovery Assistance, LLC (Judgment Creditor) points out in an unlawful detainer action a default judgment is properly entered against a defendant who was served by posting and mailing. (See Code Civ. Proc., § 415.45.) Service on Jouini, however, was not achieved by posting and mailing. Jouini was served by substituted service. Judgment</p> |
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|    |                                                                                                      | <p>Creditor thus was required to comply with the requirements of Code of Civil Procedure section 415.20, subdivision (b).</p> <p>Judgment Creditor also contends Jouini failed to give notice to the landlord that Jouini vacated the premises. Judgment Creditor asserts a tenant who abandons a lease without notifying the landlord remains liable for the rent as it becomes due. Although this may be true, Judgment Creditor fails to explain how this means the substituted service effected on Jouini in this instance was proper. Liability and valid service of process are two entirely different things.</p> <p>Judgment Creditor also argues equitable relief is not available because Jouini failed to demonstrate a meritorious defense and satisfactory excuse for not presenting a defense to the original action. Jouini does not seek relief based on the court's equitable powers. Relief is sought pursuant to Code of Civil Procedure section 473, subdivision (d). Moreover, where service of the summons and complaint is invalid, it is not necessary to show a meritorious defense. (Weil &amp; Brown, Cal. Prac. Guide: Civil Proc. Before Trial (The Rutter Group 2025) ¶ 5:494, citing <i>Peralta v. Heights Med. Ctr. Inc.</i> (1988) 485 U.S. 80, 86-87.)</p> <p>Based on the foregoing, the motion is <b>GRANTED</b>. The default and default judgments entered in this matter against Jouini are hereby <b>VACATED</b>.</p> <p>On its own motion, the court schedules an Order to Show Cause as to why the case should not be dismissed as to Jouini for failing to serve Jouini within 3 years of filing of the complaint. (Code Civ. Proc., §§ 583.210, 583.250, subd. (a)(2), 583.240.) The <b><u>Order to Show Cause hearing is set for Thursday, July 16, 2026, at 2:00 p.m., in Department C23.</u></b> Any opposition by Judgment Creditor must be filed and served by June 29, 2026, and any reply by Jouini must be filed and served by July 8, 2026. A status conference is set for the same time.</p> <p>Judgment Creditor's counsel is ordered to give notice of this ruling</p> |
| 9. | <p><b><i>Petition of Interinsurance Exchange of the Automobile Club</i></b></p> <p>2025-01529307</p> | <p>Before the court is the unopposed motion to obtain cellular phone records from Verizon or alternatively, to enforce deposition subpoena filed by petitioner Interinsurance Exchange of the Automobile Club (Petitioner). For the reasons set forth below, the motion is <b>GRANTED</b>. (Code Civ. Proc., § 1987.1, subd. (a).)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

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|     |                                                            | <p>Petitioner seeks to obtain cellular phone records for the phone number (949) xxx-8691, the number for Petitioner's insured, Erin Elizabeth McReynolds (Ms. McReynolds) for the time period of August 1, 2025, through September 30, 2025, pursuant to a deposition subpoena issued to Verizon on January 5, 2026.</p> <p>Petitioner contends the records sought are relevant and reasonably necessary to process and investigate the claim submitted by Ms. McReynolds regarding a theft loss occurring on August 31, 2025. Both Ms. McReynolds and Verizon were duly served with a copy of the instant motion, but no oppositions were filed. Moreover, Ms. McReynolds has signed a consent form for the release of the records and thus is agreeable to releasing the records. (Exh. B to Motion.) Ms. McReynolds also does not dispute the records are relevant and reasonably necessary to process and investigate the subject claim.</p> <p>Based on the foregoing, the motion is <b>GRANTED</b>. Verizon is ordered to produce documents responsive to the deposition subpoena within 20 days of service of notice of this order.</p> <p>Petitioner is ordered to submit a proposed order in accordance with this ruling, and to give notice of this ruling.</p> |
| 10. | <b><i>Claim of Yang</i></b><br><b><i>2025-01523208</i></b> | <p>Before the court is the motion of petitioner People of the State of California (Petitioner) for default and default judgment of forfeiture.</p> <p>Petitioner brings this motion under Health and Safety Code section 11488.5 on the ground no one has filed a timely and proper claim to the \$57,810 in United States Currency Petitioner seized on or about November 7, 2024. Health and Safety Code section 11488.5, subdivision (a) grants any claimant to the property subject to forfeiture 30 days from the last publication of notice of the forfeiture proceedings or 30 days after receipt of actual notice to file a verified claim for the property.</p> <p>Section 11488.5, subdivision (b)(1), provides, "If at the end of the time set forth in subdivision (a) there is no claim on file, the court, upon motion, shall declare the property seized or subject to forfeiture pursuant to subdivisions (a) to (g), inclusive, of Section 11470 forfeited to the state. In moving for a default judgment pursuant to this subdivision, the state or local governmental entity shall be required to establish a prima facie case in support of its petition for forfeiture. There is no requirement for forfeiture thereof</p>                           |

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|  | <p>that a criminal conviction be obtained in an underlying or related criminal offense.”</p> <p>“Health and Safety Code section 11488.4 provides for three types of notice of forfeiture proceedings. [Citation.] First, a person from whom property is seized and who is named in a receipt for the seized property is entitled to service of process of the petition of forfeiture. (Health &amp; Saf. Code, § 11488.4, subd. (c).) Second, notice of the seizure or of an intended forfeiture proceeding along with instructions for filing a claim is ‘to be served by personal delivery or by registered mail upon any person who has an interest in the seized property or property subject to forfeiture other than persons designated in a receipt issued for the property seized.’ (<i>Id.</i>, § 11488.4, subd. (c).) Finally, notice of a forfeiture action must be published once a week for three consecutive weeks in a newspaper of general circulation in the county of seizure. (<i>Id.</i>, § 11488.4, subd. (e).)” (<i>People v. Mendocino County Assessor’s Parcel No. 056-500-09</i> (1997) 58 Cal.App.4th 120, 125.)</p> <p>Here, on November 8, 2024, real party in interest Yuzhu Yang (Yang) was personally served with a “Receipt for Seizure and Personal Notice of Intended Forfeiture” regarding the \$57,810 in currency at issue. On November 17, 2025, Yang was personally served with the petition initiating these forfeiture proceedings. Yang is the only individual whose name appears on a receipt for the seized property, and therefore is the only individual entitled to notice under the first or second types of service described in the preceding paragraph. As stated above, Petitioner has shown Yang was personally served with the receipt as well as the petition initiating these proceedings. Petitioner was also served by mail with this motion and the supplement declaration in support of the motion. The motion also established Petitioner published notice of these proceedings for three consecutive weeks in the Orange County Reporter, thereby satisfying the requirements of Health and Safety Code section 11488.4, subdivision (e).</p> <p>No timely and proper claim has been filed by any party asserting any interest in the seized property. Accordingly, pursuant to Health and Safety Code section 11488.5, subdivision (b)(1), Petitioner is entitled to a declaration the property is forfeited upon Petitioner making a prima facie showing of its right to the forfeiture. There is no requirement that a criminal conviction be obtained in an underlying or related criminal offense.</p> |
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|     |                                                                             | <p>Based on the uncontroverted declarations of Officer N. Castro (#641) and Sergeant K. Kestly (#523), the court finds Petitioner has established a prima facie case in support of its petition for forfeiture, and therefore Petitioner is entitled to a default judgment of forfeiture.</p> <p>Based on the foregoing, the motion is <b>GRANTED</b>.</p> <p>Petitioner's counsel is ordered to give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 11. | <p><b><i>Claim of Zavala and Medina</i></b></p> <p><i>2025-01532561</i></p> | <p>Before the court is the motion of petitioner People of the State of California (Petitioner) for default and default judgment of forfeiture. As more fully set forth below, the motion is <b>CONTINUED TO THURSDAY, JULY 23, 2026, AT 2:00 P.M., IN DEPARTMENT C23</b>.</p> <p>Petitioner brings this motion under Health and Safety Code section 11488.5 on the ground no one has filed a timely and proper claim to the \$75,953.87 in United States Currency Petitioner seized on or about January 9, 2025. Health and Safety Code section 11488.5, subdivision (a) grants any claimant to the property subject to forfeiture 30 days from the last publication of notice of the forfeiture proceedings or 30 days after receipt of actual notice to file a verified claim for the property.</p> <p>Section 11488.5, subdivision (b)(1), provides, "If at the end of the time set forth in subdivision (a) there is no claim on file, the court, upon motion, shall declare the property seized or subject to forfeiture pursuant to subdivisions (a) to (g), inclusive, of Section 11470 forfeited to the state. In moving for a default judgment pursuant to this subdivision, the state or local governmental entity shall be required to establish a prima facie case in support of its petition for forfeiture. There is no requirement for forfeiture thereof that a criminal conviction be obtained in an underlying or related criminal offense."</p> <p>"Health and Safety Code section 11488.4 provides for three types of notice of forfeiture proceedings. [Citation.] First, a person from whom property is seized and who is named in a receipt for the seized property is entitled to service of process of the petition of forfeiture. (Health &amp; Saf. Code, § 11488.4, subd. (c).) Second, notice of the seizure or of an intended forfeiture proceeding along with instructions for filing a claim is 'to be served by personal delivery or by registered mail upon any person who has an interest in the seized property or property subject to forfeiture other than persons designated in a receipt issued for the property seized.' (<i>Id.</i>, § 11488.4, subd. (c).) Finally, notice of a forfeiture action must be published once a week for three</p> |

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|     |                                                                    | <p>consecutive weeks in a newspaper of general circulation in the county of seizure. (<i>Id.</i>, § 11488.4, subd. (e).)” (<i>People v. Mendocino County Assessor’s Parcel No. 056-500-09</i> (1997) 58 Cal.App.4th 120, 125.)</p> <p>Here, the two “Receipt for Seizure and Personal Notice of Intended Forfeiture” submitted identify real parties in interest Pedro Nicolas Zavala (Zavala) and Brenda Gonzalez Medina (Medina). Zavala and Medina were served with the receipts on January 9 and January 16, 2025. Accordingly, Health and Safety Code section 11488.4, subdivision (c), required Zavala and Medina each to be served with process of the petition initiating these proceedings. That generally requires personal service, but there are alternative means available upon a sufficient showing.</p> <p>Here, the declarations submitted with the motion admitted Petitioner was unable to personally serve either Zavala or Medina with the petition initiating these proceedings. Petitioner therefore sent copies of the petition to Zavala and Medina by certified mail at their last known address.</p> <p>Unfortunately, although service by certified mail is an authorized method for service of process on a defendant located in another state if the defendant signs and returns a return receipt (Code Civ. Proc., §§ 415.40, 417.20), that is not an acceptable means of service within the State of California. Service by mail within the state requires the party being served to execute a notice and acknowledgment of service. No such acknowledgment is presented in this case. As a result, neither Zavala nor Medina have been properly served in these proceedings and therefore the court cannot grant this motion at this time. The hearsay statements allegedly waiving any claim to the funds at issue is not sufficient.</p> <p>Based on the foregoing, the petition is <b>CONTINUED</b> as set forth above for proper service on Zavala and Medina. Petitioner is ordered to file a proper proof of service at least five court days before the continued hearing date.</p> <p>Petitioner’s counsel is ordered to give notice of this ruling.</p> |
| 12. | <p><b><i>Litrinium, Inc. vs. Adas</i></b></p> <p>2021-01210846</p> | No tentative ruling will be posted                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 13. | <p><b><i>Tidrick vs. FCA US LLC</i></b></p> <p>2021-01188037</p>   | Before the court are the following two motions filed by plaintiff Ashley Tidrick (Plaintiff): (1) motion for attorney fees, costs, and expenses filed on May 9, 2023, seeking attorney fees, costs, and expenses incurred from case                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |

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|  | <p>initiation through settlement and including the fee motion (ROA 156), and (2) motion for attorney fees, costs, and expenses following appeal filed on February 27, 2026, seeking attorney fees, costs, and expenses incurred on the appeal from the trial court's earlier decision on motion no. 1 (ROA 244).</p> <p>As more fully set forth below, motion no. 1 is <b>GRANTED</b> and Plaintiff is awarded a total of trial court level attorney fees, costs, and expenses of <b>\$77,924.03</b> against defendant FCA US LLC (Defendant). Similarly, motion no. 2 is <b>GRANTED</b> and Plaintiff is awarded a total of <b>\$80,015.21</b> in appellate attorney fees, costs, and expenses against Defendant.</p> <p style="text-align: center;"><b><u>Motion No. 1: Trial Level Attorney Fee Motion</u></b></p> <p>The parties settled this Song-Beverly case before trial with Defendant agreeing to pay reasonable attorney fees, costs and expenses to Plaintiff as the prevailing party. As such, there is no dispute among the parties as to Plaintiff's right to recover her attorney fees, costs, and expenses. Rather, the dispute focuses on what is the reasonable amount of attorney fees, costs, and expenses.</p> <p>By this motion, Plaintiff seeks a total of \$82,719.33, which is comprised of (1) \$69,775 in attorney fees (including time spent preparing this motion); (2) an additional \$4,500 in attorney fees for reviewing the opposition to this motion, drafting a reply, and attending the hearing; and (3) \$8,444.33 in costs and expenses.</p> <p>On August 21, 2023, the previously assigned judicial officer awarded Plaintiff \$15,000 in attorney fees and costs. (ROA 176.) Plaintiff appealed, and the Court of Appeal reversed. (ROA 184, 207; <i>Tidrick v. FCA US LLC</i> (2025) 112 Cal.App.5th 1147 (Tidrick).) On September 23, 2025, remittitur was issued, remanding the matter to the trial court with directions to "(1) award [Plaintiff] reasonable attorney fees, determined by applying the lodestar method, including employing the prevailing hourly rate for consumer attorneys in Orange County; and (2) to clarify whether [the trial court's] original order awarded [Plaintiff] her costs, and if it did not, to make an additional award of such costs." (Id. at p. 1160.)</p> <p>The Song-Beverly Act provides for attorney fees, costs, and expenses to the prevailing party in a lemon law case: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs</p> |
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|  |  | <p>and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794, subd. (d).)</p> <p>“Determining a reasonable attorney fee award in Song-Beverly Act cases “ordinarily begins with the ‘lodestar,’ [which is] the number of hours reasonably expended multiplied by the reasonable hourly rate.” [Citation.] The lodestar may ‘then be adjusted based on factors specific to the case, in order to fix the fee at the fair market value of the legal services provided.’ [Citation.] The lodestar method ‘anchors the trial court’s analysis to an objective determination of the value of the attorney’s services,’ and thus ensures the amount awarded is not arbitrary. [Citation.]” (<i>Tidrick, supra</i>, 112 Cal.App.5<sup>th</sup> at pp. 1157-1158.)</p> <p>“The Song-Beverly Act’s attorney fee provision “requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited, and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of ‘showing that the fees incurred were “allowable,” were “reasonably necessary to the conduct of the litigation,” and were “reasonable in amount.”’ [Citation.]” (<i>Tidrick, supra</i>, 112 Cal.App.5<sup>th</sup> at p. 1158.)</p> <p><u>Hourly Rates:</u> “The reasonable hourly rate is that prevailing in the community for similar work.” (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4<sup>th</sup> 1084, 1095; see also <i>Chacon v. Litke</i> (2010) 181 Cal.App.4<sup>th</sup> 1234, 1260 [“reasonable market value” of counsel’s services is measure of reasonable hourly rate].) The relevant “community” is generally based on where the services were rendered, i.e., where the court is located. (<i>Nichols v. City of Taft</i> (2007) 155 Cal.App.4<sup>th</sup> 1233, 1242-1243.) “Accordingly, the reasonable hourly rate in this case is that charged by consumer attorneys practicing in the local legal community</p> |
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|  | <p>in Orange County.” (<i>Tidrick, supra</i>, 112 Cal.App.5th at p. 1157.)</p> <p>The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. (<i>Heritage Pac. Fin., LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009; <i>569 E. County Boulevard LLC v. Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 437.) The court may consider various other factors when determining a reasonable hourly rate, including the attorney's skill and experience, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. (<i>Flannery v. California Highway Patrol</i> (1998) 61 Cal.App.4th 629, 632.)</p> <p>Here, Plaintiff seeks hourly rates for partner Nancy Zhang ranging from \$435 to \$500 over the life of the litigation; for associates Joshua Liu and Sean Crandall ranging from \$415 to \$475; and for the paralegal ranging from \$175 to \$200. Based on the evidence provided by both parties, and on the court's own experience, the court finds the hourly rates sought are commensurate with the respective attorney's level of skill and experience and consistent with the prevailing rates for consumer attorneys practicing in Orange County in Song-Beverly cases.</p> <p><u>Hours Expended:</u> “[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (<i>Horsford v Board of Trustees of California State University</i> (2005) 132 Cal.App.4th 359, 396; <i>Raining Data Corp. v. Barrenechea</i> (2009) 175 Cal.App.4th 1363, 1367 [declarations of counsel also are “sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the need to produce copies of counsel's detailed billing statements”].)</p> <p>To oppose a showing of a fee request supported by declarations describing the efforts taken with billing records to establish the hours of work, a party may either “attack the itemized billings with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable.” (<i>Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc.</i> (2008) 163 Cal.App.4th 550, 563-564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (<i>Id.</i> at p. 564.) “When confronted with hundreds of pages of legal bills, trial courts are not required to identify each charge they find to</p> |
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|  |  | <p>be reasonable or unreasonable, necessary or unnecessary.” (<i>Gorman v. Tassajara Development Corp.</i> (2009) 178 Cal.App.4th 44, 101.) “The party opposing the fee award can be expected to identify the particular charges it considers objectionable. A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections.” (<i>Ibid.</i>)</p> <p>Fee award amounts are matters within the trial court’s discretion because the “trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.” (<i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1132.)</p> <p>Here, Plaintiff seeks attorney fees in the amount of \$74,275 which is based on 173 hours of time spent from inception through the preparation of this motion (\$69,775), plus an additional \$4,500 in fees for reviewing the opposition, preparing the reply, and attending the hearing.</p> <p>Defendant argues the three motions to compel depositions filed by Plaintiff set to be heard after the discovery cutoff were unreasonable. However, “a plaintiff who is unsuccessful at a stage of litigation that was a necessary step to her ultimate victory is entitled to attorney’s fees even for the unsuccessful stage.” (<i>Cabrales v. County of Los Angeles</i> (9th Cir.1991) 935 F.2d 1050, 1053.) Based on the timing of the settlement negotiations, it cannot be said that the motions did not help Plaintiff achieve victory in this case.</p> <p>Defendant next argues that time spent preparing written discovery, meet and confer letters, research and the anticipated hours on this fee motion are duplicative and/or excessive. A review of the billing records, however, shows the amount of time expended on each task is generally commensurate with the task, and not duplicative. Although Defendant argues the time spent is excessive in light of Plaintiff’s counsel employing “templates,” the number of hours sought for the individual tasks however reflect fewer hours are being sought than would be appropriate if the work was started from scratch without templates.</p> <p>That is not to say that all time sought was reasonably expended. Although Orange County was an appropriate venue as pointed out by the Court of Appeal, Plaintiff’s selection of a venue that is a considerable distance from Plaintiff, the vehicle, and the dealership does not entitled</p> |
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|  |  | <p>Plaintiff to recover lengthy travel time that was required because of that selection. For example, on September 17, 2021, attorney Liu spent 7.3 hours traveling to and from the vehicle inspection in Fresno. The court finds that amount of travel is not reasonable and Defendant should not be required to compensate Plaintiff for that time. A total of 2.0 hours for traveling to and from an inspection is more reasonable. Accordingly, the court will deduct 5.3 hours of time, based on attorney Liu's then current hourly rate of \$415, for a total deduction of \$2,199.50.</p> <p>Moreover, Defendant correctly points out certain vague time entries by attorney NZ make it difficult to determine the reasonableness of the time spent, including "[e]mail to associate." Plaintiff does not justify the time in the reply. The court therefore reduces the fee award by the following time entries: 07/9/21 (0.40), 07/22/21 (0.40), 10/08/21 (0.20), 10/26/21 (0.20), 11/15/21 (0.20), 12/27/21 (0.30), 02/16/22 (0.40), 04/20/22 (0.30), 06/27/22 (0.30), 07/15/22 (0.60), 11/17/22 (0.20), 11/22/22 (0.40), 12/01/22 (0.40), 12/06/22 (0.40), 12/29/22 (0.40), 01/27/23 (0.80), for a total of \$2,595.90.</p> <p>The court therefore will deduct a total of \$4,795.40 from the request of \$74,275, which leads to a lodestar \$69,479.60. The court does not find any circumstances that warrant adjustment, either upward or downward. Although Defendant argues Plaintiff unreasonably denied an early settlement offer and unnecessarily litigated this case, Plaintiff was under no obligation to accept the offer and Plaintiff ultimately obtained a settlement higher than the initial settlement offer.</p> <p><u>Costs and Expenses:</u> Plaintiff seeks a total of \$8,444.43 in costs and expenses. Under Civil Code section 1794, subdivision (d), as the prevailing party, Plaintiff is entitled to all "costs and expenses" that were reasonably incurred in prosecuting the case, including items beyond the statutory costs enumerated in Code of Civil Procedure section 1033.5. (<i>Jensen v. BMW of North Am.</i> (1995) 35 Cal.App.4th 112, 137-138.) Defendant does not dispute the reasonableness of the costs and expenses Plaintiff identified. The court finds all such costs and expenses to be reasonable and therefore awards the entire amount of \$8,444.43.</p> <p><u>Total Award:</u> When the amount of fees awarded (\$69,479.60) is added to the costs and expenses awarded (\$8,444.43) the total award is \$77,924.03.</p> |
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Based on the foregoing, the trial level motion for attorney fees, costs, and expenses is **GRANTED**, and Plaintiff is awarded a total of \$77,924.03 as against Defendant.

**Motion No. 2: Appellate Attorney Fees,  
Costs, and Expenses**

As noted above, Plaintiff appealed the prior judicial officer's ruling on motion no. 1. The Court of Appeal reversed that decision and remanded the matter to this court for further proceedings. (*Tidrick, supra*, 112 Cal.App.5th 1147.) By this motion, Plaintiff seeks to recover attorney fees, costs, and expenses in connection with that separate appeal.

As in trial court litigation, attorney fees on appeal are recoverable if authorized by contract, statute, or law. (Code of Civ. Proc. § 1033.5, subd. (a)(10); *Serrano v. Unruh* (1982) 32 Cal.3d 621, 637; *Butler-Rupp v. Lourdeaux* (2007) 154 Cal.App.4th 918, 927.) As set forth above, the prevailing buyer on a Song-Beverly case is entitled to reasonable attorney fees, costs, and expenses under Civil Code section 1794, subdivision (d). This includes fees and costs incurred in a successful appeal. (*Karapetian v. Kia Motors America, Inc.* (C.D. Cal. 2013) 970 F.Supp.2d 1032, 1038, *aff'd* (9th Cir. 2016) 633 Fed. Appx. 476.) Plaintiff is the prevailing party on the appeal and is entitled to attorney fees.

Defendant does not dispute that a plaintiff who is successful on an appeal in a Song-Beverly case generally is entitled to recover their appellate attorney fees, costs, and expenses. Nonetheless, Defendant argues Plaintiff should be denied appellate fees in this case because the appeal was necessitated by an alleged judicial error—i.e., the prior judicial officer's decision to apply Fresno hourly rates and otherwise make reductions not advanced by Defendant. Defendant contends it should not be required to pay Plaintiff's appellate fees in these circumstances. Defendant, however, fails to cite any authority supporting this alleged exception to Plaintiff's statutory right to recover attorney fees. Accordingly, the court finds Plaintiff is entitled to her appellate attorney fees; the only question is what constitutes a reasonable amount of fees, costs, and expenses in this case.

As discussed above, the standard for determining reasonableness of attorney fees starts with the lodestar and the number of hours actually expended, which is then adjusted based on reasonableness considering all the

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|  | <p>circumstances of the case. (<i>Tidrick, supra</i>, 112 Cal.App.5th at pp. 1157-1158.)</p> <p>By this motion, Plaintiff seeks a total award of attorney fees, costs, and expenses in the amount of \$189,763.81, which is comprised of (1) \$137,106 in attorney fees (\$81,169 for Consumer Law Experts, PC and \$55,937 for Jeff Dominic Price); (2) a multiplier of 1.35 resulting in an additional \$47,987.10 in attorney fees; (3) an additional \$2,800 in attorney fees for reviewing the opposition to this motion, preparing a reply, and appearing at the hearing; and (4) \$1,870.71 in costs and expenses.</p> <p><u>Hourly Rates:</u> As stated above, the court begins its lodestar analysis by determining the reasonable hourly rate for each attorney and professional who worked on the appeal based on their experience, the prevailing rates in the Orange County legal community for work of this nature on a Song-Beverly case, and a variety of other factors identified above, including the trial court's own experience.</p> <p>Plaintiff seeks approval for the following hourly rates: \$917 for attorney and appellate specialist Jeff Dominic Price, \$560 for partner Jordan G. Cohen, \$525 for partner Nancy Zhang and associate Joseph Liu, and \$195 for multiple paralegals. Based on the information provided by the parties regarding the professionals' experience and prevailing rates in the community for work of this nature, as well as the court's own experience, the court finds some of these rates to be a little excessive.</p> <p>Mr. Price has a number of years of experience, including several as a certified appellate specialist, but he does not have any significant experience in Song-Beverly cases. Although some of the sub-issues presented were not specifically Song-Beverly issues, this case nonetheless is a Song-Beverly case. The court finds \$700 to be a reasonable and appropriate hourly rate for Mr. Price in this specific case.</p> <p>As for attorneys Cohen, Zhang, and Liu, they have 12 to 18 years of experience, with less than 10 years of Song-Beverly experience. The fact these fees were incurred in connection with an appeal does not warrant an increase beyond their customary hourly rates and they have little to no appellate experience among them. The court finds the appropriate and reasonable hourly rates for these three attorneys to be \$500. As for the paralegal time, the court finds the requested \$195 hourly rate to be reasonable and</p> |
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|  | <p>customary in the relevant community for work of the nature performed.</p> <p><u>Hours Expended:</u> As presented in the moving papers, Plaintiff seeks compensation for 210.1 hours of work plus an additional \$2,800 in fees for reviewing the opposition to this motion, preparing a reply, and appearing at the hearing. For reference, Plaintiff sought compensation for 173 hours of time spent in the trial court as described above in connection with motion no. 1.</p> <p>Specifically, Plaintiff seeks compensation for 130.7 hours performed by attorney Cohen, 61 hours performed by attorney Price, 9.3 hours performed by attorney Liu, 4 hours performed by attorney Zhang, and a total of 5.1 hours performed by paralegals.</p> <p>The court is familiar with the venue issue that was presented on the appeal. It was an unsettled question of law, but it was not overly complicated or unduly time consuming. There were two positions to be presented, with the Court of Appeal to decide which controlled. Entitlement to fees was not at issue; rather, the appeal focused on the appropriate amount of fees and whether the trial court applied the correct standard and decided all necessary issues.</p> <p>This court is familiar with appellate practice and what is required to pursue an appeal to completion. The court did some appellate work in private practice, and before taking the bench, also worked for seven years at the Court of Appeal.</p> <p>Based on its familiarity with the issues presented, its review of the file in this case, its review of all briefs on this motion and the billing statements, and its overall experience, the court finds the number of hours performed by attorneys Price and Cohen to be excessive and unreasonable, and therefore worthy of reduction. The court also finds it is not appropriate to charge Defendants for the work Plaintiff's attorney did to request and obtain publication of the Court of Appeal's decision. Although that may have advanced the interests of counsel in their pursuit of other cases, it did not advance Plaintiff's case.</p> <p>The court finds the appropriate and reasonable number of hours expended in connection with the appeal by attorney Price to be 40 hours and for attorney Cohen to be 85 hours. The court finds the number of hours sought by the other professionals—i.e., attorneys Zhang and Liu and the paralegals—to be reasonable. This includes the time spent</p> |
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in connection with this motion, which the court finds reasonable.

Lodestar Totals and Adjustments: Based on the foregoing the court finds the total lodestar and lodestar for each professional to be as follows:

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| Attorney Price: | 40 hrs. x \$700/hr. = \$28,000  |
| Attorney Cohen  | 85 hrs. x \$500/hr. = \$42,500  |
| Attorney Liu    | 9.3 hrs. x \$500/hr. = \$4,650  |
| Attorney Zhang  | 4.0 hrs. x \$500/hr. = \$2,000  |
| Paralegals      | 5.1 hrs. x \$195/hr. = \$994.50 |
| TOTAL           | \$78,144.50                     |

The court therefore fixes the lodestar at \$78,144.50. The court has discretion to increase or decrease the lodestar by looking at factors including, but not limited to, the contingent risk, "the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, or other circumstances in the case." (*PCLM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096; *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 160-161.)

Plaintiff requests a multiplier enhancement of 1.35, and Defendant seeks a negative multiplier. Given the totality of circumstances, the court exercises its discretion not to apply a multiplier at all – either positive or negative. Plaintiff bore the risk of non-recovery of payment in the appeal and the appeal dealt with a novel issue regarding venue. The issues were not complex, however, and the skill employed was not so extraordinary as to warrant an upward adjustment. Furthermore, the appeal was initially prompted by the trial court's error and abuse of discretion for which Defendant should not have to bear further expense. The court finds the foregoing hourly rates and number of hours reasonably compensates Plaintiff and her counsel for all time reasonably expended on the appeal.

Costs and Expenses: Plaintiff seeks a total of \$1,870.71 in costs and expenses. Under Civil Code section 1794, subdivision (d), as the prevailing party, Plaintiff is entitled to all "costs and expenses" that were reasonably incurred in prosecuting the case, including items beyond the statutory costs enumerated in Code of Civil Procedure section 1033.5. (*Jensen v. BMW of North Am.* (1995) 35 Cal.App.4th 112, 137-138.) The Court of Appeal also awarded Plaintiff her costs on appeal. Defendant does not dispute the reasonableness of the costs and expenses Plaintiff identified. The court finds all such costs and

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|     |                                          | <p>expenses to be reasonable and therefore awards the entire amount of \$1,870.71.</p> <p><u>Total Award:</u> When the amount of fees awarded (\$78,144.50) is added to the costs and expenses awarded (\$1,870.71) the total award is \$80,015.21.</p> <p>Based on the foregoing, the trial level motion for attorney fees, costs, and expenses is <b>GRANTED</b>, and Plaintiff is awarded a total of \$80,015.21 as against Defendant.</p> <p><u>Notice:</u> Plaintiff's counsel is ordered to give notice of these rulings.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 14. | <b>Reid vs. Catullo</b><br>2019-01073251 | <p>Before the court is the continued hearing on the motions to be relieved as counsel of record for defendants Daniel E. Catullo III, The City Drive Group, LLC, and The City Drive Films, LLC (collectively, Defendants) filed by attorney Joseph S. Schuchert of Schuchert Ngo, LLP. As set forth below, the unopposed motions are <b>GRANTED</b>.</p> <p>These motions originally came on for hearing on March 5, 2026, at which time the court continued the motions to April 9, 2026, because there was no proof of service filed showing the moving papers were served on Defendants. On April 9, 2026, the court continued the hearing again to May 14, 2026, because, although moving counsel filed a proof of service showing Defendants were served with the moving and supporting papers, the proof of service did not show Defendants were provided with timely statutory notice of the hearing on these motions pursuant to Code of Civil Procedure section 1005, subdivision (b). The court continued the hearing to ensure Defendants received timely statutory notice. Moving counsel was ordered to give notice of the court's ruling to all parties and file a proof of service thereof at least five court days prior to the hearing. (See Minute Order at ROA 451.)</p> <p>Moving counsel filed a notice of ruling which shows all parties were timely served with notice of the court's April 9, 2026 ruling. (ROA 455). Moving counsel has now corrected the procedural issues.</p> <p>The court finds good cause to grant the relief requested on the merits. The motions therefore are <b>GRANTED</b>.</p> <p>The orders granting relief are effective upon filing of a proof of service of the signed orders on Defendants.</p> <p>Moving counsel is ordered to give notice.</p> |
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